

Court No. - 36

Case :- WRIT - C No. - 2655 of 2015

Petitioner :- Mithilesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- R.O.V.S. Chauhan, S.O.V.S. Chauhan

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Vivek Kumar Birla, J.

Sri Baleshwar Chaturvedi, learned counsel for the contesting respondent no. 4 seeks time to obtain instructions.

On his request, put up on 28.1.2015 as a fresh case. He shall produce before this Court the order passed by the respondent no. 4 in pursuance of which the impugned recovery citation dated 13.11.2014 has been issued.

Order Date :- 22.1.2015

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(Vivek Kumar Birla, J)

(Vineet Saran, J)

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Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Rakesh Tiwari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

Heard learned Counsel for the petitioner, learned Standing for respondent nos. 1, 2 and 3, and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 4.

By means of this writ petition the petitioner has approached this Court for quashing the Citation dated 13.11.2014 for the recovery of Rs. Two Lacs plus collection charges regarding electricity dues.

It is submitted by learned counsel for the petitioner that the petitioner has already applied for permanent disconnection of electricity but his connection has not been permanently disconnected. Thus the petitioner is not liable to pay any amount after the application for disconnection was filed by him.

Learned counsel for the respondent no. 4 submits that the petitioner has an alternative and efficacious remedy under Clause 7.10 of the Electricity Supply Code 2005.

In case the petitioner files his case before the State Forum within fifteen days from today, the same shall be decided within one month from the date of filing of the case.

With the aforesaid direction this petition is disposed of.

Order Date :- 30.1.2015

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